

The Bihar and Orissa Board of Revenue Act, 1913

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[Act 1 of 1913](#)

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[The Bihar and Orissa Board of Revenue Act, 1913](#)

[Bihar and Orissa Act](#)

[1 of 1913](#)

[\[Dated 21st May, 1913\]](#)

[An Act to alter the constitution of the Board of Revenue for Bihar and Orissa.](#)

[Whereas it is expedient to alter constitution of the Board of Revenue of Bihar and Orissa:](#)

[And whereas the sanction of the Governor General has been obtained under Section 5 of the Indian Councils Act, 1892, to the passing of this Act:](#)

[It is hereby enacted as follows:](#)

[1.](#)

[Short title.](#)

- This Act may be called the Bihar and Orissa Board of Revenue Act, 1913.

2.

Designation of Board.

- Board of Revenue for the [State]

[Substituted by A.L.O.]

[* *]

['of Bihar and Orissa' repealed by A.O.]

shall be called the Board of Revenue [* *]

['for Bihar and Orissa' repealed by A.O.]

.

3.

Number of Members of Board.

- The said Board shall consist of one Member only, to be appointed by the [State]

[Substituted by A.L.O.]

Government by notification in the [Official Gazette:]

[Substituted by A.O. for 'Local Official Gazette'.]

Provided that the [State]

[Substituted by A.L.O.]

Government may, at any time, by like, notification [* *]

[Words 'with the previous sanction of the Government of India' replied by Section 2 and Schedule I of Act 38 of 1920.]

appoint a temporary additional Member.

4.

Powers and duties of Additional Member.

- An Additional Member of the Board of Revenue appointed under the proviso to Section 3 shall exercise and perform such powers and duties of the Board as the [State]

[Substituted by A.L.O.]

Government may direct.

5.

Construction of references to former Boards.

- All references in and enactment or in any notification, order, scheme, rule, form or by-law issued, made or prescribed under any enactment to-

(a)

the Board of Revenue as constituted under the Bengal Board of Revenue Regulation, 1822, and under clause first of Section 4 of the Bengal Revenue Commissioners Regulation, 1829, or

(b)

the Board whose functions were transferred to the said Board of Revenue by the Bengal Board of Revenue Act, 1850, shall be construed as references to the Board as reconstituted by or under this Act.

6.

Review of orders by Board.

(1)

Any person considering himself aggrieved by any order of the Board of Revenue may apply to the Board for a review of the same and, if the Board considers there are sufficient reasons for so doing, it may review the order and pass such further order as it thinks fit.

(2)

Every application under sub-section (1) for a review of any order must be made within a period of three months from the date of the order:

Provided that the Board may in its discretion in any case extend such period, if sufficient reasons be shown for so doing.

7.

Repeal.

- The enactments specified in the Schedule are hereby repealed to the extent mentioned in the fourth column thereof.

The Schedule

Enactments Repealed

(See Section 7)

Year

No.

Short title

Extent of repeal

1

2

3

4

Bengal Regulation

1822

3

The Bengal Board of Revenue Regulation, 1822.

So much as is unrepealed.

Acts of the Governor-General of India

in-Council

1850

44

The Bengal Board of Revenue Act, 1850.

So much as is unrepealed.

1874

15

The Laws Local Extent Act, 1874.

So much of the Fourth Schedule as relates to Bengal

Regulation 3 of 1822 and Act 44 of 1850.

1891

12

The Amending Act, 1891.

So much of the Second Schedule as relates to Bengal

Regulation 3 of 1822.

1903

1

The Repealing and Amending Act, 1903.

So much of the Second Schedule as relates to Bengal

Regulation 3 of 1822.

1912

7

The Bengal, Bihar and Orissa and Assam Laws Act, 1912.

Section 4.

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